

Mr. Karan Nath vs . Mr. Kailash Nath & Ors. on 1 October, 2014

IN THE COURT OF MS. ANJANI MAHAJAN, CIVIL JUDGE-10
(CENTRAL), TIS HAZARI COURTS, DELHI

SUIT NO. 380/08

Mr. Karan Nath Vs. Mr. Kailash Nath & Ors.

ORDER:

1. This order shall decide the application of the plaintiff U/o 23 R 1 CPC for withdrawal of the suit with liberty to file a fresh suit.

2. It is contended in this application that the plaintiff has filed the suit for declaration declaring the plaintiff as possessing the rights as co-parcener along with the defendant no. 1 in the joint family property and for rendition of accounts in favour of the plaintiff as well as for permanent and mandatory injunction restraining the defendants from disposing off, dealing with or converting the property from lease hold to free hold or disturbing the interest/vested share of the plaintiff in the Hindu Undivided Family property.

3. The plaintiff states that he is the son of the defendant no. 1 and defendants no. 2 and 3 are the daughters of defendant no. 1 and defendant no. 4 is the wife of defendant no. 1. It is stated that the defendant no. 1 is the father of the plaintiff therefore the plaintiff enjoys equal rights in the suit property along with the defendants. It is stated that it is the admitted position Suit No. 380/o8 Mr. Karan Nath Vs. Mr. Kailash Nath & Ors. 1/12 that the plaintiff is the real son of defendant no. 1 and it is also the admitted position of the defendants no. 2 to 4 that the property in question is HUF property. It is stated that the plaintiff has filed the suit for declaration of the alleged settlement between the defendants in respect of the suit property being null and void which is pending adjudication before the Hon'ble Delhi High Court bearing no. CS (OS) 1630/o6. The plaintiff avers that including the stands taken by the plaintiff in the present suit the plaintiff would like to prefer a suit for partition/any other remedy available under the law for seek his statutory rights over the property in question and the plaintiff seeks liberty to withdraw the suit and raise the contentions and prayers of the present suit in the suit for partition/any other remedy available under the law.

4. The defendant no. 1 has failed to file reply to this application or to address arguments. Reply has been filed by the defendants no. 2 and 3 who have strongly opposed the application. Defendant no. 4 has not filed the reply but counsel for defendant no. 4 stated that the defendant no. 4 was adopting the arguments advanced by defendants no. 2 and 3.

5. Preliminary objections have been taken by the defendants no. 2 and 3 in their reply. It is stated that the plaintiff filed the suit for declaration of his right in respect of the property in question and had failed to seek consequential relief for partition at the time of filing the suit and failed to seek

liberty to seek such relief at a later stage therefore the bar of Order 2 Rule 2 CPC would Suit No. 380/o8 Mr. Karan Nath Vs. Mr. Kailash Nath & Ors. 2/12 apply to file a fresh suit on the same cause of action. Further, it is averred that the plaint contentions would show that the applicant is challenging the family settlement dated 01.07.1992 and adjudication of the suit would amount to challenging the said family settlement and granting the liberty to file the suit afresh on the same cause of action would be barred by limitation. Further, it is averred that the plaintiff was admittedly born in the year 1997 and he had no right to challenge the family settlement dated 01.07.1992 as the right if any stood extinguished in the year 1998 i.e. three years after the plaintiff attained majority. It is argued that the present suit as well as any suit filed later would be barred by limitation. The defendants also contend that the plaintiff has failed to disclose that he has instituted various litigations with respect to his alleged right to the suit property. The plaintiff filed a suit for declaration and consequential relief in respect of the suit property i.e. 39, Pirthivi Raj Road in August, 2006 i.e. bearing CS(OS) No. 1630/06 in the Hon'ble Delhi High Court wherein the plaintiff had challenged the family settlement dated 01.07.1992. The plaintiff could not seek reliefs on the basis of same cause of action. It is stated that the present suit is barred U/s 11 CPC since the reliefs sought in the present suit were claimed by the plaintiff in the earlier suit no. 1630/06 vide IA No. 13150/07 and they were rejected vide order dated 02.09.2008 except that defendants would not create any third party interest in the suit property during the pendency of the said suit. It is contended that by way of family Suit No. 380/o8 Mr. Karan Nath Vs. Mr. Kailash Nath & Ors. 3/12 settlement dated 01.07.1992 the rights with respect to the property in question had been settled between the defendants no. 1 to 4. The said settlement was further affirmed by the mediation agreement dated 19.09.2007 which culminated into passing of the decree dated 07.11.2007 by the Hon'ble Delhi High Court. The issue regarding rights of the property in the suit had been settled and a compromise decree has been passed on the basis of settlement. Therefore, the plaintiff was precluded in law from challenging the compromise decree.

6. In the reply on merits, the defendants no. 2 and 3 state that the plaintiff was born out of an adulterous relationship of defendant no. 1 and had no right in law to seek any right in the property of the defendant no. 1. The defendants no. 2, 3 and 4 had filed an application U/o VII R 11 CPC for rejection of the plaint inter alia on this ground and after the application had been argued substantially and the suit had been pursued for three years, the plaintiff is seeking to file another suit with liberty. Pendency of the suit CS(OS) 1630/06 is admitted. It is stated that the plaintiff has been abusing the process of the court by agitating the same issue repeatedly. It is stated that since the suit itself is not maintainable and is liable to be dismissed U/o VII R 11 CPC, therefore the question of granting liberty to file a suit for consequential relief for partition does not arise. It is prayed that the application be dismissed.

7. Oral arguments were addressed by counsel for plaintiff and defendant Suit No. 380/o8 Mr. Karan Nath Vs. Mr. Kailash Nath & Ors. 4/12 no. 2 and 3 along the same lines extensively.

8. Counsel for plaintiff in support of his arguments relied on 2011 IAD (Delhi) 404, 159 (2009) Delhi Law Times 470 (DB), (2007) 3 Supreme Court Cases 557, Judgment of Hon'ble Madras High Court dated 06.04.1999 titled Esanya Madalayam Religious Institution owned by Koviloor Muthuramalingam Gnana Desigar Madalayam represented by its Madathipathi Sri□a□Sri

Nachiappa Gnanadesiga Samigal Vs. Tiruvannamalai Sevasramam Educational Trust, represented by its Secretary Dr. D. Subbarayan equivalent citation (1999) 2MLJ360, Judgments of Hon'ble Supreme Court in Beniram & Ors. Vs. Gaiind & Ors. Civil Appeal No. 535 of 1970 with Civil Miscellaneous Petition No. 5669/1981 decided on 30.07.1981 (equivalent citation AIR 1982 SC 789) and Revanasiddappa & Anr. Vs. Mallikarjun & Ors. decided by Hon'ble Supreme Court on 31.03.2011. Counsel for defendants no. 2 and 3 on the other hand relied on the Jinia Keotin & Ors. Vs. Kumar Sitaram Manjhi & Ors. i.e. Appeal (Civil) 7247/1995 decided by Hon'ble Supreme Court on 20.12.2002, Kamal Kumar Jain Vs. Raj Kumari Jain C.R.P. No. 125/2004 decided by Hon'ble Delhi High Court on 29.01.2007 equivalent citation 2007 (4) AD (Del) 618 and Bharatha Matha & Anr. Vs. R. Vijaya Renganathan & Ors. Civil Appeal No. 7108/2003 decided by Hon'ble Suit No. 380/o8 Mr. Karan Nath Vs. Mr. Kailash Nath & Ors. 5/12 Supreme Court on 17.05.2010.

9. I have heard the arguments advanced by counsel for the parties and perused the record and judgments cited at Bar.

10. As regards the argument of the defendants that a settlement has already been arrived at in relation to the suit property and the issue cannot be reagitated, counsel for plaintiff has correctly argued that vide the order of Hon'ble Delhi High Court dated 07.11.2009 it has specifically been noted that the compromise which had been arrived at between the parties to the suit in the suit no. 1259/2003 wherein the plaintiff was admittedly not a party, would not be binding on the plaintiff herein and it had been noted that plaintiff had already filed CS(OS) No. 1630/06. Even as such the challenge to said compromise decree has been done by the plaintiff by way of separate suit pending before the Hon'ble Delhi High Court bearing no. 1630/06 and the cause of action for filing the present suit is different from the cause of action for filing the said suit challenging the compromise decree. This argument of the defendants is thus without merit.

11. However, this court had sought the clarification from the plaintiff regarding the contrary stands taken in the suit filed before the Hon'ble Delhi High Court no. 1630/06, (copy of which is on record) on the one hand and the averments made in the present application as perusal of the copy of the plaint filed in said suit shows that in para 3 (xvi) thereof the plaintiff had Suit No. 380/o8 Mr. Karan Nath Vs. Mr. Kailash Nath & Ors. 6/12 contended that being an illegitimate child of the defendant no. 1 herein he had all the rights of co-parcener except the right to claim partition while on the other hand vide the present application the plaintiff was seeking to withdraw the present suit with liberty to file a fresh suit inter alia for partition and other reliefs. In this regard counsel for plaintiff raised an interesting argument that in the judgment of Revanasiddappa & Anr. (Supra), the Division Bench of the Hon'ble Supreme Court had taken a different view from the one taken taken in Jinia Keotin & Ors. (Supra) and Bharatha Matha & Anr. (Supra) on Section 16 (3) of the Hindu Marriage Act and had placed the matter before the Hon'ble Chief Justice of India for consideration of the larger bench for reconsideration of the issue taking the view that Section 16 (3) as amended did not impose any restriction on the property rights of children of void and voidable marriages except restricting their rights to the property of their parents whether the property be acquired or ancestral and he contended that since this judgment noticed the earlier judgments of the Hon'ble Supreme Court on the same point and took a different view from the same it in fact amounted to overruling the earlier judgments. In this regard he relied on a judgment of P.V. George & Ors.

(Supra) wherein it was held that the law declared by the court would have retrospective effect if not otherwise stated so specifically. Counsel for defendants no. 2 and 3 counter argued that if the plaintiff was basing his right to claim partition on the judgment of the Hon'ble Supreme Court in Suit No. 380/o8 Mr. Karan Nath Vs. Mr. Kailash Nath & Ors. 7/12 Revanasiddappa & Anr. (Supra) then as such there was no requirement for him to seek liberty to file a fresh suit since the ratio of that judgment, if considering the argument of the plaintiff to be correct at face value (of course without prejudice) would constitute a fresh cause of action for which as such no liberty is required.

12. While in my opinion the argument of the plaintiff that the judgment of Revanasiddappa & Anr. Vs. Mallikarjun & Ors. has the retrospective effect of overruling the earlier judgment like Jinia Keotin & Ors. Vs. Kumar Sitaram Manjhi & Ors. is contentious since no final verdict has been given by the Hon'ble Supreme Court in that case and the matter was referred for reconsideration by a larger bench however an argument of the plaintiff which has much force is that this aspect regarding whether or not by virtue of said judgment the plaintiff who has admitted in the suit proceeding before the Hon'ble Delhi High Court to being the illegitimate son of the defendant no. 1 is not for this court to consider since the limited question before this court is whether the plaintiff can be allowed to withdraw the present suit with liberty to file a fresh suit on the same cause of action and as such the merits of the case which the plaintiff would seek to set up in the fresh suit if permission is granted by this court to the plaintiff to file the same can not be considered by this court.

Order 23 R (1) CPC provides as follows: □ Suit No. 380/o8 Mr. Karan Nath Vs. Mr. Kailash Nath & Ors. 8/12 "1. Withdrawal of suit or abandonment of part of claim. □ At any time after, the institution of a suit, the plaintiff may as against all or any of the defendants abandon his suit or abandon a part of his claim:

Provided that where the plaintiff is a minor or other person to whom the provisions contained in rules 1 to 14 of Order XXXII extend, neither the suit nor any part of the claim shall be abandoned without the leave of the Court."

Order 23 R 1 (3) provides as follows: □ "(3) Where the Court is satisfied, □

(a) that a suit must fail by reason of some formal defect, or

(b) that there are sufficient grounds for allowing the plaintiff to institute a fresh suit for subject □ matter of a suit or part of a claim, it may, on such terms as it thinks fit, grant the plaintiff permission to withdraw from such suit or such part of the claim with liberty to institute a fresh suit in respect of the subject □ matter of such suit or such part of claim."

13. As per the provisions of U/o 23 R 1 (3) CPC what has to be seen by the court is whether the suit must fail by reason of some formal defect or whether there are sufficient grounds for allowing the plaintiff to institute a fresh suit for the subject matter of the suit or part of the claim. The question would be then whether the plaintiff's present suit would fail for some technical defect. Counsel for plaintiff argued that if he had sought amendment in the present suit for claiming the relief of

partition then the value of the property being Suit No. 380/08 Mr. Karan Nath Vs. Mr. Kailash Nath & Ors. 9/12 much beyond the pecuniary jurisdiction of this court as such the suit could not have proceeded forward in this court and would have to fail for reason of lack of pecuniary jurisdiction. Again the question of whether bar of Order 2 Rule 2 CPC would apply to the suit filed by the plaintiff for partition or whether the same would be barred by limitation would be matters which only the court which would be seized of such a suit would have the jurisdiction to decide. As such, it is well settled that the liberty if any which is granted by the court is always subject to the law of limitation and the grant of liberty by this court can not in law be considered as granting an extension of the limitation period for the plaintiff to file any such suit. It was argued by counsel for defendant that valuable rights of the defendants no. 2 and 3 would be affected if the liberty were granted since the case prior to the filing of the application U/o 23 R 1 CPC was pending adjudication on the application of the defendants no. 2 and 3 U/o VII R 11 CPC and it was likely that the application of the defendants no. 2 and 3 would have been decided in favour of the defendants no. 2 and 3 and the plaint would have been rejected. This argument is fallacious since record shows that part arguments had been advanced by counsel for the parties and the order was yet to be passed on said application of the defendant U/o VII R 11 CPC. It is for the court to adjudicate whether or not the application U/o VII R 11 CPC is to be allowed or rejected and even otherwise in case a plaint is rejected U/o VII R 11 CPC the plaintiff always has the liberty to file a fresh suit Suit No. 380/08 Mr. Karan Nath Vs. Mr. Kailash Nath & Ors. 10/12 on the same cause of action as per law of course again subject to law of limitation as is provided U/o VII R 13 CPC.

14. The well settled law is that the plaintiff who is master of his suit is generally at liberty to withdraw the suit at any stage of the proceedings and even as regards the liberty which is being sought by the plaintiff vide his present application, in my opinion it is correctly argued by the plaintiff that had he sought an amendment to the present suit for claiming the relief of partition the same would have taken the case beyond the pecuniary jurisdiction of this court and as such it would have constituted a technical defect and even otherwise there is sufficient reason to grant the liberty to the plaintiff since the present suit is at a nascent stage where even the issues have not yet been framed. The defendants can not claim any vested right at this nascent stage in the present suit and the issue of bar of limitation is to be raised by them in the subsequent suit which the plaintiff shall prefer in pursuance to the liberty granted by this court to file a fresh suit on the same cause of action. The judgments relied on by the defendants in support of their arguments are distinguishable on facts. Of course for the prejudice if any and inconvenience caused to the contesting defendants no. 2 to 4 for defending the suit since the year 2008 the defendants no. 2 to 4 deserve to be compensated (since as per the record for the past various dates none has bothered to appear on behalf of the defendant no. 1). Therefore subject to cost of Rs. 6,000/□Suit No. 380/08 Mr. Karan Nath Vs. Mr. Kailash Nath & Ors. 11/12 (Rupees Six Thousand Only) to be paid equally to the defendants no. 2 to 4 (Rs. 2000/□each to defendants no. 2 to 4, by way of cheque/demand draft in favour of defendants no. 2 to 4) the present application of the plaintiff U/o 23 R 1 CPC is allowed and the present suit is dismissed as withdrawn with liberty to the plaintiff to file a fresh suit on the same cause of action as per law subject to law of limitation.

File be consigned to the Record Room.

Announced in the open court

ANJANI MAHAJAN

On 01.10.2014

Civil Judge - 10 (Centr
01.10.2014

Suit No. 380/08

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